

**RESOLUTION DECLARING TRANSPORTATION
IMPRACTICAL FOR THE 2024-2025 SCHOOL YEAR**

The Board of Education of the Brecksville-Broadview Heights City School District, Cuyahoga County, met in regular session this 17th day of July 2024, with the following members present:

_____ moved and _____ seconded the adoption of the following resolution:

WHEREAS, pursuant to section 3327.02 of the Revised Code, the Board of Education of the Brecksville-Broadview Heights City School District (“Board” or “Board of Education” or “District”) may determine that it is impractical to transport a pupil who is eligible for transportation to and from a school under section 3327.01 of the Revised Code after considering each of the following factors:

1. The time and distance required to provide the transportation
2. The number of pupils to be transported
3. The cost of providing transportation in terms of equipment, maintenance, personnel, and administration
4. Whether similar or equivalent service is provided to other pupils eligible for transportation
5. Whether and to what extent the additional service unavoidably disrupts current transportation schedules; and
6. Whether other reimbursable types of transportation are available

WHEREAS, the Board must make such determination not later than thirty (30) calendar days prior to the District’s or the school’s first day of instruction, or in the case of a student who enrolls within thirty (30) calendar days prior to the first day of instruction or on or after the first day of instruction, not later than fourteen (14) calendar days after the students enrollment; and

WHEREAS, in light of the above-stated timelines set forth in section 3327.02 of the Revised Code and pursuant to same, the Superintendent has the authority to make the determination of impracticality prior to the next Board meeting, with the Superintendent’s determination considered by the Board at its next meeting; and

WHEREAS, in accordance with section 3327.02 of the Revised Code, the Board shall report its determination to the Ohio Department of Education and shall further issue a letter to the pupil’s parent, guardian, or other person in charge of the pupil, as well as issue a letter to the nonpublic or community school in which the pupil is enrolled with a detailed description of the reasons for which such determination was made; and

WHEREAS, after a determination declaring the impracticality of transportation is made pursuant to this Resolution, the Board shall offer to provide payment in lieu of transportation by informing the pupil’s parent, guardian, or other person in charge of the pupil of this Resolution and of the right of the pupil’s

parent, guardian, or other person in charge of the pupil to accept the offer of payment in lieu of transportation or reject the Board's offer of payment in lieu of transportation.

NOW, THEREFORE, BE IT RESOLVED based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2024-2025 school year via this Resolution for the pupils attending the Assumption School listed in Exhibit A, determined on an individual and case-by-case basis, based on: (1) there are only two students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the hiring and training of a new bus driver, fuel and maintenance; and (3) the school's bell schedule conflicts with the District's current routed public and non-public routes and will cause connecting routes to be late.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2024-2025 school year via this Resolution for the pupils attending Birchwood School of Hawken (Elementary) as listed in Exhibit B, determined on an individual and case-by-case basis, based on: (1) there is only one student who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2024-2025 school year via this Resolution for the pupils attending Heritage Classical Academy-Peninsula as listed in Exhibit C, determined on an individual and case-by-case basis, based on: (1) there are only seven students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2024-2025 school year via this Resolution for the pupils attending Holy Family School as listed in Exhibit D, determined on an individual and case-by-case basis, based on: (1) there are only two students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2024-2025 school year via this Resolution for the pupils attending Holy Name High School as listed in Exhibit E, determined on an individual and case-by-case basis, based on: (1) there are only three students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2024-2025 school year via this Resolution for the pupils attending Insightful Minds as listed in Exhibit F, determined on an individual and case-by-case basis, based on: (1) there is only one student who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2024-2025 school year via this Resolution for the pupils attending Lawrence Upper School as listed in Exhibit G, determined on an individual and case-by-case basis, based on: (1) there are only three students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2024-2025 school year via this Resolution for the pupils attending Padua Franciscan High School as listed in Exhibit H, determined on an individual and case-by-case basis, based on: (1) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (2) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2024-2025 school year via this Resolution for the pupils attending St. Barnabas as listed in Exhibit I, determined on an individual and case-by-case basis, based on: (1) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (2) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2024-2025 school year via this Resolution for the pupils attending St. Bartholomew as listed in Exhibit J, determined on an individual and case-by-case basis, based on: (1) there is only one student who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the

Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending St. Charles Borromeo School as listed in Exhibit K, determined on an individual and case-by-case basis, based on: (1) there are only three students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2024-2025 school year via this Resolution for the pupils attending St. Columbkille School as listed in Exhibit L, determined on an individual and case-by-case basis, based on: (1) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (2) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2024-2025 school year via this Resolution for the pupils attending St. Hilary School as listed in Exhibit M, determined on an individual and case-by-case basis, based on: (1) there is only one student who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that the Brecksville-Broadview Heights City School District hereby offers the parent, guardian, or other person in charge of the pupil payment in lieu of providing transportation, and hereby directs the Superintendent and Treasurer or designee(s) to provide notification to the parent, guardian, or other person in charge of the pupil of the Board's determination and of the right to accept or reject this offer as set forth herein and in accordance with section 3327.02 of the Revised Code.

BE IT FURTHER RESOLVED that it is hereby found and determined that all formal actions of the Board concerning and relating to the adoption of this Resolution were adopted in an open meeting of the Board, and that all deliberations of the Board and any of its committees that resulted in such formal action were open to the public when required by law, in full compliance with the law.

UPON ROLL CALL, on passage of the foregoing resolution, the vote was as follows:

	<u>Yea</u>	<u>Nay</u>
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

Exhibit A- Assumption Academy

- 1. Noah Stacher**
- 2. Contessa Magnelli**

Exhibit B- Birchwood School of Hawken

1. Aarav Ahuja

Exhibit C- Heritage Classical Academy-Peninsula

- 1. Colette Chen**
- 2. Elinor Chen**
- 3. Jordan Hamilton**
- 4. Claire Newman**
- 5. Jack Newman**
- 6. Jackson Zaccardelli**
- 7. Micah Zaccardelli**

Exhibit D- Holy Family School

- 1. Madison Csank**
- 2. Makenzie Csank**

Exhibit E- Holy Name High School

- 1. Cecilia Gordan**
- 2. Irena Gordan**
- 3. Thomas Gordan**

Exhibit F- Insightful Minds

1. Angeline Bican

Exhibit G- Lawrence Upper School

- 1. Emma Apanasewicz**
- 2. Evelyn Duffy**
- 3. Gracie Horgan**

Exhibit H- Padua High School

- 1. Vincent Arcuri**
- 2. Carter John Domo**
- 3. Lila Freilino**
- 4. Rocco Luciano**
- 5. Carter Palange**
- 6. Lucas Palange**
- 7. Giulia Reginelli**
- 8. Sophia Yonan**
- 9. Katherine Zmich**

Exhibit I- St. Barnabas

- 1. Jack Briggs**
- 2. Kate Briggs**
- 3. Sam Briggs**
- 4. Landon Dooley**
- 5. Natalie Iacoboni**
- 6. Nora Iacoboni**
- 7. Calvin Janki**
- 8. Louis Janki**
- 9. Elle Rote**
- 10. Juliette Rote**
- 11. George Tagliaferro**
- 12. Jack Tagliaferro**
- 13. Luke Tagliaferro**
- 14. William Walko**

Exhibit J- St. Bartholomew

1. Mila Rossi

Exhibit K - St. Charles Borromeo School Parma

- 1. Michael Gordan**
- 2. Blake Heston**
- 3. Devon Heston**

Exhibit L - St. Columbkille School

- 1. Samantha Hein**
- 2. Gianni McIntyre**
- 3. Teagen McIntyre**
- 4. Molly Palange**

Exhibit M - St. Hilary School

1. Astella Tartabini